IN THE NATIONAL COMPANY LAW TRIBUNAL

COURT III, NEW DELHI

CA(CAA)/101/2021

IN THE MATTER OF SECTION 230-232 OF THE COMPANIES ACT, 2013

In the matter of Scheme of Arrangement

of

M/S GOEL SPONGE PRIVATE LIMITED

(Petitioner/Transferor Company-1)

And

M/S ZODIAC BUILDCONS PRIVATE LIMITED

(Petitioner/Transferor Company-2)

With

M/S SAGACIOUS CAPITAL PRIVATE LIMITED

(Petitioner/Transferee Company)

Coram:

Shri Bachu Venkat Balaram Das
Member (Judicial)

Shri Virendra Kumar Gupta
Member (Technical)

Order delivered on: 27.05.2022

For the Petitioners: Mr. Hitesh Jhamb, Practising Company Secretary

MEMO OF PARTIES

M/S GOEL SPONGE PRIVATE LIMITED

Registered Office at A-1/25, PaschimVihar,

New Delhi 110063

....Petitioner/Transferor Company-1

AND

M/S ZODIAC BUILDCONS PRIVATE LIMITED

Registered Office at A-1/25,

PaschimVihar, New Delhi 110063

....Petitioner/Transferor Company-2

WITH

M/S SAGACIOUS CAPITAL PRIVATE LIMITED

Registered Office at A-1/25,

PaschimVihar, New Delhi 110063

....Petitioner/Transferee Company-3

ORDER

Per- Shri Virendra Kumar Gupta, Hon'ble Member (Technical)

1. This is joint application filed by the Petitioner companies herein, M/s **GOEL SPONGE PRIVATE LIMITED** (hereinafter referred to as the "Petitioner/Transferor Company-1"), M/s **ZODIAC BUILDCONS PRIVATE LIMITED** (hereinafter referred to as the "Petitioner/Transferor Company-2") and M/s **SAGACIOUS CAPITAL PRIVATE LIMITED** (hereinafter referred to as the "Petitioner/Transferee Company-3") under Section 230-232 of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the

Scheme of Arrangements by way of Amalgamation (hereinafter referred to as the "SCHEME") proposed between the Petitioners.

2. The Applicant Companies had sought for the dispensation of the meeting of the Equity shareholders and Creditors of the Transferor and Transferee Companies.

3. An Affidavit in support of the above application sworn by Mr. Aneesh Goel& Mr. Nirmal Goel, Directors for the Petitioner Companies, being the Director as well as the authorized signatory of all the above Petitioner Companies, who has been authorized, vide Board Resolution dated 25th June, 2021 for both the Transferor Companies and Transferee Company respectively, has been duly filed, along with the application. It is also represented that the registered office of the Petitioner companies are under the domain of Registrar of Companies, NCT of New Delhi & Haryana and within the territorial jurisdiction of this Tribunal.

4. The Petitioner/Transferor Company-1 is a private limited company incorporated as 'M/s Goel Sponge Private Limited' vide CIN U74110DL2005PTC140730 issued by the Registrar of Companies, NCT of Delhi & Haryana. The registered office of the Company is situated at A-1/25, PaschimVihar, New Delhi 110063. The Authorized Share Capital of the Petitioner/Transferor Company-1 is Rs. 1,00,00,000 divided into 10,00,000 Equity Shares of Rs.10/- each of which 30,000 Equity Shares were issued and Rs. 10/- was paid up on each share issued.

5. The Petitioner/Transferor Company-2 is a private limited company incorporated as 'M/s Zodiac Buildcons Private Limited' vide CIN U74999DL2005PTC143370 issued by the Registrar of Companies, NCT of Delhi & Haryana. The registered office of the Company is situated at A-1/25, PaschimVihar, New Delhi 110063. The Authorized Share Capital of the Petitioner/Transferor Company-2 is Rs. 1,00,00,000 divided into

10,00,000 Equity Shares of Rs.10/- each of which 2,43,500 Equity Shares were issued and Rs. 10/- was paid up on each share issued.

6. The Petitioner/Transferee Company is a private limited company incorporated as 'M/s Sagacious Capital Private Limited' vide CIN U7411ODL2004PTC128852 issued by the Registrar of Companies, NCT of Delhi & Haryana. The registered office of the Company is situated at A-1/25, Paschim Vihar, New Delhi 110063. The Authorized Share Capital of the Petitioner/Transferee Company is Rs. 1,00,00,000 divided into 10,00,000 Equity Shares of Rs.10/- each of which 6,87,414 Equity Shares were issued and Rs. 10/- was paid up on each share issued.
7. The Petitioner Companies, vide their respective meeting of the Board of Directors held on 25th June, 2021 have unanimously approved the proposed Scheme of Amalgamation as contemplated above. Copies of said resolutions passed in the said board meetings have been placed on record.
8. That all the Petitioner Companies have filed their Affidavits in compliance of Section 230(2)(a) of Companies Act, 2013 submitting therein that none of the Petitioner Companies are under any prosecutions/investigation/inquiry under Companies Act, 2013.
9. That the Petitioner Companies have also placed on record the Certificate from the Statutory Auditors confirming that their Accounting Standards are in conformity with the provisions of Section 133 of the Companies Act, 2013.
10. That the Petitioner Companies have filed their respective Memorandum of Association (MOAs) and Article of Association (AOAs). The Petitioner Companies have filed their latest Balance Sheets as on 31.03.2021.

11. Taking into consideration the submissions and the documents filed therewith, the following directions are issued forthwith with respect to dispensing with the meetings of the Shareholders, Secured and Unsecured Creditors as follows:

A. <u>In relation to the Transferor Company 1:</u>

a) **With respect to Equity Shareholders**: That it is submitted that there are 2 (Two) Equity Shareholders in the Petitioner/Transferor Company-1 whose No Objection Certificates by way of Affidavits have been obtained and placed on record, the necessity of convening and holding the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors**: There are no Secured Creditors; therefore the necessity of convening a meeting does not arise.

c) **With respect to Unsecured Creditors**: That it is submitted that there are only 2 (two) unsecured Loans in the Petitioner/Transferor Company-1 and their No Objection Certificates to the Scheme of Merger, has been filed, convening the meeting of Unsecured Creditors is dispensed with.

B. **<u>In relation to the Transferor Company 2</u>**:

a) **With respect to Equity shareholders**: That it is submitted that there are 3 (Three) Equity Shareholders in the Petitioner/Transferor Company-2 and their No Objection Certificates to the Scheme of Merger, has been filed, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors**: There are no Secured Creditors; therefore the necessity of convening a meeting does not arise.

c) **With respect to Unsecured Creditors**: There are no Unsecured Creditors; therefore the necessity of convening a meeting does not arise.

C. **In relation to the Transferee Company :**

a) **With respect to Equity shareholders**: That it is submitted that there are 2 (Two) Equity Shareholders in the Petitioner/Transferee Company and their No Objection Certificates to the Scheme of Merger, has been filed, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors**: There are no Secured Creditors; therefore the necessity of convening a meeting does not arise.

c) **With respect to Unsecured Creditors**: That it is submitted that there are 3 (three) unsecured Loans and 1 (One) Sundry Creditors in the Petitioner/Transferee Company-3 and their No Objection Certificates to the Scheme of Merger, has been filed, convening the meeting of Unsecured Creditors is dispensed with.

12. Notice of this application shall also be served on the Regional Director, Ministry of Corporate Affairs, B-2 Wing, 2 Floor, Paryawaran Bhavan, CGO Complex, New Delhi-110003; Registrar of Companies at 4 floor, IFCI Tower, 61, Nehru Place, New Delhi-110019; Official Liquidator, Lok Nayak Bhavan, 8 Floor, Khan Market, New Delhi-110001; Income Tax Department, Income Tax Office, Additional Commissioner of Income Tax, Special Range 4, Central Revenue Building, IP Estate, New Delhi-110002. The notices to Income Tax Authorities shall disclose sufficient details like PAN card numbers, ward numbers and assessing officers so that timely and proper reply may be filed.

The application stands allowed on the aforesaid terms. Let the petition for approval of the scheme of arrangement be filed within a period of seven days from the date of this order.

(BACHU VENKAT BALARAM DAS)
MEMBER (J)

(VIRENDRA KUMAR GUPTA)
MEMBER (T)

The order is pronounced Under Rule 151 of National Company Law Tribunal Rules, 2016.

Madhu Narula
(Court Officer)